



MVV CITY FLAT OWNERS ASSOCIATION MEMORANDUM & BYE-LAWS

Association Office:
3rd Floor, South Club House,
MVV City, Vasundhara Nagar,
PM Palem, Visakhapatnam,
Andhra Pradesh - 530041.

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Contents

DOCUMENT – I MEMORANDUM OF MVV CITY FLAT OWNERS WELFARE ASSOCIATION.....	3
1. PRELIMINARY.....	3
2. INTERPRETATIONS:	3
3. SCOPE OF OPERATION:.....	5
4. AIMS AND OBJECTIVES:.....	5
5. EQUIPMENT OF THE ASSOCIATION:	6
6. DECLARATION:.....	6
DOCUMENTNO.II BYE-LAWS / RULES AND REGULATIONS OF MVV CITY FLAT OWNERS WELFARE ASSOCIATION.....	10
7. ASSOCIATION MEMBERSHIP:.....	10
8. CLUB MEMBERSHIP:	11
9. TRANSFER OF ASSOCIATION MEMBERSHIP.....	11
10. CESSATION OF MEMBERSHIP	12
11. RIGHTS OF A MEMBER	12
12. RESPONSIBILITIES & LIABILITIES OF THE MEMBERS OF THE ASSOCIATION.....	13
13. FINANCES-INCOME-EXPENDITURE	16
13.1 CORPUS FUND	16
13.2 RAISING FUNDS	16
13.3 UTILIZATION OF FUNDS	17
13.4 QUANTUM OF CONTRIBUTION AND PAYMENT.....	18
14. MANAGEMENT	19
15. DUTIES AND RESPONSIBILITIES OF EXECUTIVE COMMITTEE	21
16. DUTIES AND RESPONSIBILITIES OF OFFICE BEARERS	23
16.1 President	23
16.2 Vice President.....	24
16.3 Secretary:.....	24
16.4 Joint Secretary :	25
16.5 The Treasurer.....	25
16.6 Joint Treasurer	26
16.7 Block Executive Member From Block 1 to 12	26
17. OPERATION OF BANK ACCOUNT/S OF THE ASSOCIATION	26
18. DISCIPLINARY ACTION	27
19. DUTIES AND RESPONSIBILITIES OF THE GENERAL BODY	28
20. ELECTION OF THE EXECUTIVE COMMITTEE	29
21. CONTESTING AND VOTING	30
22. REGISTERS.....	31

Signature of the President/Secretary

23.	PERIODICITY OF MEETINGS	31
24.	QUORUM FOR MEETINGS	32
25.	RULES OF THE ASSOCIATION.....	32
25.1	PAYMENTS POLICY	32
25.2	CLEANLINESS POLICY	32
25.3	VENDOR & MARKETING EXECUTIVES POLICY.....	33
25.4	VEHICLE ENTRY & PARKING POLICY.....	33
25.5	PET POLICY	34
25.6	MAINTENANCE AND REPAIR WORKS POLICY	35
25.7	RENTAL POLICY	36
25.8	DOMESTIC HELPLERS POLICY.....	36
25.9	MISCELLANEOUS	36
26.	WAIVERS.....	38
27.	AMENDMENT OF BYE-LAWS:.....	38
28.	ARBITRATION	38
29.	OFFICIAL SEAL.....	39
30.	WINDING UP.....	39
31.	MISCELLANEOUS	39
	CERTIFIED TO BE A CORRECT COPY	40
	FORM – A : LETTER OF CONSENSUS.....	42
	FORM – B: JOINT DECLARATION & AUTHORIZATION	43
	FORM – C: DECLARATION BY THE GUARDIAN OR MINOR OWNER	44
	FORM – D: NOMINATED OWNER AUTHORIZATION LETTER	45
	FORM – E: TRANSFER OF OWNERSHIP LETTER	46
	FORM – F: PROXY AUTHORIZATION LETTER	47
	FORM – G: ASSOCIATE MEMBER AUTHORIZATION LETTER	48
	FORM – H: ASSOCIATE MEMBER CANCELLATION LETTER	49
	FORM – I: LETTER REQUESTING OF CHANGE OF CONTACT DETAILS	50

DOCUMENT – I MEMORANDUM OF MVV CITY FLAT OWNERS WELFARE ASSOCIATION

1. PRELIMINARY

- 1.1 The name of the Association shall be "**MVV City Flat Owners Welfare Association**" which for the sake of brevity and clarity shall herein after be referred to as "**The Association**" and the same is registered with the Registrar of Societies under the provision of A.P. Societies Registration Act 2001 (Act 35/2001).
- 1.2 The registered office of the Association shall be at administrative office of MVV City, Door No.1-39, 3rd Floor, South Club House, Vasundhara Nagar, PM Palem, Visakhapatnam – 530041 (Andhra Pradesh).

2. INTERPRETATIONS:

Unless otherwise specifically provided in these bye-laws, the following words and terms shall have the meaning assigned to them herein.

- 2.1 "**Act**" shall mean the Andhra Pradesh Societies Registration Act 2001 (Act35/2001).
- 2.2 "**Bye-Laws**" shall mean the registered bye-laws of the Association namely the "MVV City Flat Owners Welfare Association" and as amended time to time.
- 2.3 "**Executive Body**" shall mean the body consisting of 6 elected members namely President, Vice President, Secretary, Joint Secretary, Treasurer and Joint Treasurer.
- 2.4 "**Executive Committee**" shall mean the 6 members of the Executive body and 12 elected Block Executive Members one each from twelve blocks.
- 2.5 "**Sub-Committee**" shall mean a committee that may be constituted or nominated by Executive Committee for any specific purposes or other directing body to which the management of the affairs of the Association are to be entrusted.
- 2.6 "**Developer / Builder**" shall mean **M/s MVV Builders** having Regd. Office at Plot No.21, Lawsons Bay Colony, near Post Office, Visakhapatnam – 530017, who is the developer and builder of **MVV City** consisting of twelve Blocks (each Block having 119 flats and total twelve blocks together are 1428 Flats) with amenities situated at Door No. 1-39, Vasundhara Nagar, PM Palem, Visakhapatnam – 530041 (Andhra Pradesh)
- 2.7 "**Block**" shall mean a Tower with self-contained set of 119 Flats used or intended to be used solely for residential purpose only. There are 12 Blocks in the MVV City viz., Block A to L also termed as Block No. 1 to 12 and covered under exchange deed or Registered Sale Deed through which it is transferred or purchased.
- 2.8 "**Common Areas and Amenities**" shall mean and include the land in "MVV City Complex" and also the structure of the buildings, two Club Houses (named as North and South Club Houses including guest rooms, gym and all other facilities provided in the two club houses), water supply system including sumps, bore wells, pipelines, sewerage lines,

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compound wall, passages, open area, common corridors, staircases, generator room, circuit breakers and meter room, open shafts, common toilets, lifts, generators, transformers, water piping system, drainage system, electricity distribution system, etc., common service connections of water supply, sewerage, and pathways, drive ways, office room and toilets and other rooms meant for the Association staff etc., basically all such areas, structures, installations or any other areas that may be earmarked for common use and facilities which are for the common use of residents except the inner area of the flats of owners.

- 2.9 **“Association”** shall mean MVV City Flat Owners Welfare Association.
- 2.10 **“Corpus Fund”** shall mean a fixed permanent fund collected one time by the Builder @ Rs.50,000.00 (Rs. Fifty Thousand) from each flat owner at the time registration of flat and which was kept with the Builder and the funds to be collected by the Association from the buyer for the unsold flats if any at the time of handing over of the premises by the Builder to the Association. This total amount so collected in the above two ways shall be kept in permanent fixed deposit / security deposit earning maximum interest in any nationalized Banks.
- 2.11 **“Member of the Association” or “Association Member”** shall mean any of the Registered Owner, Nominated Owner and Associate Member and these are detailed as in 2.12, 2.13 and 2.14.
- 2.12 **“Registered Owner”** shall mean buyer on whose name the flat in MVV City Complex has been registered and reflects in the registered documents. The Registered Owners shall have all the rights to vote and contest in the Association elections subject to the eligibility as described in the **"CONTESTING AND VOTING"** section of these bye-laws.
- 2.13 **“Nominated Owner”** shall mean:
- a) In case of registered owner being a major, he/she can nominate his/her parent or a son or a daughter or spouse as Nominated Owner through power of attorney.
 - b) In case of the registered owner being a minor, his/her parent automatically becomes Nominated Owner. In case the parents are not alive, the legal guardian becomes Nominated Owner.
 - c) The Nominated Owners are entitled to vote and contest in the Association election subject to eligibility as described in the **"CONTESTING AND VOTING"** section of these bye-laws.
- 2.14 **“Associate Member”**- shall mean any person who is not an Owner but is residing as a tenant (lawful possession) of any flat in the MVV City Complex shall be eligible to become Associate Member subject to submission of documents as specified by the Executive Committee. If the flat is owned by a company for residential purpose, the member nominated by the company shall be eligible to become Associate Member subject to submission of documents as specified by the Executive Committee. The

Associate Members shall have rights only to enjoy the benefits of living in the flat and availing the common facilities only. Associate Members are not entitled either to vote or contest in the Association elections.

3. SCOPE OF OPERATION:

- 3.1 The area of operation of the Association shall be confined to the Residential Apartment Complex under the name and style of "**MVV City**" comprising all the 12 towers viz., Block from 1 to 12 and the premises on which the same is constructed including common areas, amenities and two Club Houses and shall deal with the Owners of flats or Owners represented by their GPA Holders, tenants, licensees and occupants thereof including but not limited to Owners cum Members and Associate Members.
- 3.2 English is the official language for all communications and correspondence.
- 3.3 For all legal matters, the Jurisdiction shall be VISAKHAPTNAM City.

4. AIMS AND OBJECTIVES:

- 4.1 To take care of welfare of the owners and residents of MVV City.
- 4.2 To take possession / ownership of all common areas, amenities, Club Houses, Temple, Outdoor sports facilities, internal roads, passage way and landscaping, and equipment installed in the premises of "MVV City" as mentioned in Para No.2.8 from MVV Builders, along with all original documents and supporting documents like agreements and AMCs and allotment of parking spaces to members.
- 4.3 To look after the regular maintenance and upkeep of all amenities and equipment.
- 4.4 To take care of the appearance of the MVV City buildings including whitewashing, painting etc., of the entire exterior and the interiors of the common areas.
- 4.5 To take all necessary steps for the safety, security and comfort of the MVV City residents.
- 4.6 To ensure routine minor and major maintenance works of all common areas, amenities, facilities and equipment including plumbing dealing with potable water, sewage, rainwater, bore wells, landscaping, internal roads, etc., However, the Association will not be responsible for the repairs and maintenance of any facilities inside the flats, except providing the assistance through a service provider for the routine and minor fixing of taps, and troubleshooting of electrical issues on a payment basis by the owner/associate member of the flat.
- 4.7 To collect maintenance charges and such other charges from the members of the Association on a continuous basis.
- 4.8 To obtain High Tension power supply connections in future - H.T Category VI

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(Townships and Residential Colonies power supply) or any other solar power connection/approval/permission / license that may be required for the entire MVV City in the name of the Association and in turn provide the power supply to all the flats and common areas of the MVV City which will be billed in the name of the Association and shared among the members as may be decided by the Executive Committee from time to time.

- 4.9 To Promote peace and harmonious living conditions, environment and atmosphere for the ultimate benefit of all the Members of the Association.
- 4.10 To Promote, encourage and carryout sports, social, cultural, temple and recreational activities for the benefit of all the Members of the Association.
- 4.11 To carry out such other objectives, as the Members in the General Body may decide from time to time.
- 4.12 To do any other things permissible by the law and is necessary and convenient for the accomplishment and fulfilling of the aforesaid objectives of the Association.

5. EQUIPMENT OF THE ASSOCIATION:

- 5.1 The Association shall have control and maintenance of all the equipment which will be taken over from the Developer/Builder or forming part of the project at the time of handing over and any future acquisition of equipment.

6. DECLARATION:

It is:

- 6.1 Certified that the Association is formed with a 'no profit and no loss' motive and that no commercial activity is involved in its working.
- 6.2 Certified that the Association shall not engage itself in any agitational activities to ventilate any grievances.
- 6.3 Certified that the office bearers of the Association shall not be paid any remuneration or honorarium or payment of any kind from the funds raised by the Association.
- 6.4 Certified that the office bearer's signatures are genuine.
- 6.5 We, the undersigned persons in the memorandum of Association have formed into an Association and responsible to run the affairs of the Association and desirous of getting the society registered under the Act.

Signature of the President/Secretary

Present Executive Committee

SINo.	Name with Fathers' Name	Age	Address	Profession	Designation	Signature
1	Koppaka Gangadhara Narasimha Murthy S/O late K. Somulu	46	Flat # 5155, MVV City, Vasundhara Nagar, PM Palem, Visakhapatnam - 530041	IT Services	President	
2	Vamsy Kiran Aripaka s/o Aripaka Nageswara Rao	38	Flat # 9015, MVV City, Vasundhara Nagar, PM Palem, Visakhapatnam - 530041	IT Services	Vice- President	
3	Suresh Babu Pedireddy S/o P Kameswara Rao	45	Flat # 5125, MVV City, Vasundhara Nagar, PM Palem, Visakhapatnam - 530041	IT Services	Secretary	
4	Aruna Devi Chennupati. W/o. Chandra Sekhar CH.	58	Flat # 12114 , MVV City, Vasundhara Nagar, PM Palem, Visakhapatnam - 530041	Retired Central Government Employee	Joint Secretary	
5	Boina Ravindra S/o Boina Pakir	53	Flat # 10035, MVV City, Vasundhara Nagar, PM Palem, Visakhapatnam - 530041	CA	Treasurer	
6	Padala Uma Maheshwar Rao S/o Late P Appanna Rao,	63	Flat # 8046, MVV City, Vasundhara Nagar, PM Palem, Visakhapatnam - 530041	Retired Employee	Joint- Treasurer	
7	KAKARLAPUDI SRIDEVI W/o K.Ashokkumar	43	Flat # 1145, MVV City, Vasundhara Nagar, PM Palem, Visakhapatnam - 530041	Home Maker	Block 1 Executive Member	
8	DAMODARA TIRUMALA GOWRI DEVI W/O DAMODARA SRINIVASA RAO	41	Flat # 2026, MVV City, Vasundhara Nagar, PM Palem, Visakhapatnam - 530041	Home Maker	Block 2 Executive Member	
9	Boddeti Satya Pentaraao S/o Joginaidu (late)	55	Flat # 3026, MVV City, Vasundhara Nagar, PM Palem, Visakhapatnam - 530041	Service	Block 3 Executive Member	

Signature of the President/Secretary

Signature of the President/Secretary

SINo.	Name with Fathers' Name	Age	Address	Profession	Designation	Signature
10	N.Madhavi D/O. N.Kataji rao	47	Flat # 4083, MVV City, Vasundhara Nagar, PM Palem, Visakhapatnam – 530041	Advocate	Block 4 Executive Member	
11	Chikkala. Jagadeeswari W/o. Ch. Narayana Rao	60	Flat # 5118, MVV City, Vasundhara Nagar, PM Palem, Visakhapatnam - 530041	Advocate	Block 5 Executive Member	
12	Dr. M. Krishna Ram Bhatlu s/o m. P. H. Bhatlu	37	Flat # 6066, MVV City, Vasundhara Nagar, PM Palem, Visakhapatnam - 530041	Dental Surgeon	Block 6 Executive Member	
13	Pentakota venkata satyanarayana s/o Apparao(late)	53	Flat # 7028, MVV City, Vasundhara Nagar, PM Palem, Visakhapatnam - 530041	Service	Block 7 Executive Member	
14	Tankala Venkata Sivaji S/o Bhaskara rao	62	Flat # 8065, MVV City, Vasundhara Nagar, PM Palem, Visakhapatnam - 530041	Civil Engineer	Block 8 Executive Member	
15	V. Shourya Reddy, S/o V.C. Reddy (late)	61	Flat # 9038, MVV City, Vasundhara Nagar, PM Palem, Visakhapatnam - 530041	Veteran	Block 9 Executive Member	
16	A SARVESWARA RAO S/o KRISHNARAO	46	Flat # 10064, MVV City, Vasundhara Nagar, PM Palem, Visakhapatnam - 530041	Business	Block 10 Executive Member	
17	Modali Venkata Gopala Naga Soma Satyanand S/o MVS N Murthy	44	Flat # 11086, MVV City, Vasundhara Nagar, PM Palem, Visakhapatnam - 530041	Service	Block 11 Executive Member	
18	Dangeti Rama Krishna S/o D Ganapathi Rao	68	Flat # 12077, MVV City, Vasundhara Nagar, PM Palem, Visakhapatnam - 530041	Service	Block 12 Executive Member	

Signature of the President/Secretary

**DOCUMENT NO. II BYE-LAWS / RULES AND REGULATIONS OF MVV CITY FLAT
OWNERS WELFARE ASSOCIATION**

7. ASSOCIATION MEMBERSHIP:

- 7.1 Each Flat shall have only one membership.
- 7.2 The members of the Association shall consist of all the Registered Owners, Nominated Owners and Associate Members as described in "INTERPRETATIONS" section. The registered owners and nominated owners shall constitute the General Body. All the flat owners need to submit their consensus (as per Form "A" appended) with specimen signature and contact details along with copy of sale deed evidencing ownership.
- 7.3 In the event of any flat is jointly owned by more than one person, all the joint owners shall provide declaration /authorization (as per Form "B" appended) mutually agreeing to provide membership in the name of one of the Joint owners.
- 7.4 In the event of minor being the owner of any flat, his/her natural guardian i.e., either mother or father or any person being appointed as legal guardian shall get membership on behalf of minor by providing declaration (as per Form "C" appended).
- 7.5 In the event of demise of any member, his/her legal successor is entitled to become the member of the Association and in the event of there being more than one successor they are obligated to provide joint declaration/authorization (as per Form "B" appended) mutually agreeing to provide membership in the name of one of the Joint owners.
- 7.6 Nominated owners as described in para 2.12 should submit Form-D issued by the registered owner along with the power of attorney.
- 7.7 Associate Member as described in para 2.13 should submit Form-G issued by the registered owner.
- 7.8 The Member so admitted will have such rights, responsibilities and liabilities as laid down in these Bye-Laws.
- 7.9 All tenants residing in the flats shall be Associate Members of the Association and all such Associate Members shall abide by these Bye laws without any voting and contesting rights. Only one person is entitled to become Associate member from each flat
- 7.10 Tenant shall mean any person along with his/her family members, who intends to reside in the premises and who had entered into rental agreement directly with a Flat Owner. Incoming Tenant of "MVV CITY", prior to moving into the premises, should register his/her name with the Association on payment of non-refundable Registration

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Fee of Rs.1000/- or as decided by the Executive Committee from time to time and sign the Registration form.

- 7.11 The above registration shall remain valid for the duration of the valid rental agreement. Extension of rental agreement shall not attract re- registration.
- 7.12 The outgoing tenant shall be allowed to leave only on presenting a No Objection Certificate (NOC) from the Association office.
- 7.13 Each and every member and his resident family members of the MVV City must get his/her photo ID from the association office on paying the fee as fixed by the Executive committee.
- 7.14 Photo ID card issued by Executive Committee shall be presented to the security staff whenever requested, while entering the MVV City premises and Club houses.
- 7.15 All common facilities and amenities shall be used by members and their resident family members using Photo ID, Access/ Biometric cards issued by Executive Committee.

8. CLUB MEMBERSHIP:

- 8.1 Registered owner, Nominated Owner and Associate Member and their parent, spouse, children and other residing family members shall automatically become the member of the Club and can avail all the Club facilities and participate in all the activities including programs organized by the Association, subject to payment of subscription fee, if any as prescribed by the Executive Committee from time to time.
- 8.2 In the event of the flat being rented, only the Associate Member (tenant) is eligible to be a club member and the registered owner is not entitled as club member.
- 8.3 Club facilities are strictly for the use of club members only. However, entry for guests of the club members will be as per the rules and regulations set from time to time by the Executive Committee or any other committee set for the same by the Association.
- 8.4 Any violation in using the amenities will be viewed seriously and a penalty/fine will be imposed as decided by the Executive Committee.
- 8.5 The Executive Committee has to entrust the responsibility of maintenance and upkeep of club facilities and other amenities to a reputed Agency in the respective fields.
- 8.6 The Executive Committee shall seek the General Body approval for any usage conversion of club house facilities.

9. TRANSFER OF ASSOCIATION MEMBERSHIP

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- 9.1 In the event of a flat being purchased after the formation of the Association, the new owner of that flat have to submit the transfership agreement letter stating that the Corpus fund paid by the previous owner is transferred to him/her.
- 9.2 Along with this document a fee of Rs. 10000/- or as decided from time to time by the executive committee has to be paid as membership transfer fee.
- 9.3 A member admitted to the association in less than one month prior to the date of the Annual General Body Meeting shall not be eligible to vote in that Annual General Body Meeting; however, he is eligible to vote in subsequent General Body Meetings.

10. CESSATION OF MEMBERSHIP

- 10.1 A member shall cease to be a member when he ceases to be an owner of a flat or when he/she demises.
- 10.2 A member shall also cease to be a member when he/she is declared as bankrupt or insolvent or found to be convicted under law.
- 10.3 A nominee of a minor owner automatically ceases to be a member the day the minor owner becomes a major.
- 10.4 A ceased member should however, pay all the outstanding amounts due to the Association. In the event of non-payment of the same by the ceased member, the liability shall automatically be transferred to the new owner.
- 10.5 In case of transfer of the ownership of the flat prior to handing over the possession, the Member shall intimate to the Association his intention to do so in the Form "E" appended on payment of arrears / dues to enable the Association to issue No due certificate.
- 10.6 An Associate Member shall automatically cease to be a Member (Associate) simultaneously on the termination of his tenancy. He should however, pay all outstanding amounts due to the Association prior to vacating the premises, if any. In case of non-payment of such dues, the liability for payment shall automatically be transferred to the owner whose premises has been vacated.

11. RIGHTS OF A MEMBER

- 11.1 Every member of the association shall have a right to receive a soft copy of the Bye-Laws of the Association. However, a hard copy of the Bye-Laws can be requested on payment of a nominal amount as fixed by the executive body.
- 11.2 Every member should sign and submit "Form-A" to the Association for record as a proof

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of having read, understood and agreed to abide by the Bye-Laws. In the event of change of ownership, the new owner should also submit the signed copy "Form-A" to the Association.

- 11.3 Any registered owner or nominated owner shall have a right to seek the needy information from books, registers, documents etc., maintained by the association during office hours with prior application to the President or Secretary.
- 11.4 Every registered owner or nominated owner shall be entitled to receive a copy of the statement of account and such other documents relating to the management and affairs of the Association as may be required upon payment charges fixed by the Executive Body. Every member is entitled to receive a copy of the audited annual statement of accounts at the time of Annual General Body meeting.
- 11.5 Every member of the association shall be entitled to submit his/her grievance in respect of any of the amenities and / or facilities in the building complex for redressal within a reasonable time.
- 11.6 Every owner member shall be entitled to seek a response from Executive Committee as to how surplus funds of the Association are utilized. However, this right shall be exercised only during the annual general meeting or when not less than 1/5th of the Members issue a notice to the Executive Committee in writing.
- 11.7 Every Registered Owner shall be entitled to contest in the election provided he/she is residing in MVV City, unless disqualified in accordance with the Bye-Laws. Residing in MVV City means that the flat is not leased or rented and is in the occupancy of the registered owner.
- 11.8 No member of the association shall be entitled either to vote or contest in the association elections, if she/he is in arrears of any sum due in respect of his/her contribution for common expenses/subscriptions for more than 60 days on the last day of the year preceding the year in which the association elections would take place.

12. RESPONSIBILITIES & LIABILITIES OF THE MEMBERS OF THE ASSOCIATION

- 12.1 All the members shall regularly pay maintenance charges as stipulated by the Association from time to time and also other amounts as per the decision of the Executive Committee from time to time.
- 12.2 Every member shall keep his/her flat and the common areas clean.
- 12.3 No Member shall stock or store any kind of goods or materials which are combustible/ obnoxious/dangerous/hazardous or goods that are not permitted to be stored in the premises like heavy items/packages/equipment that may damage the structure of the building
- 12.4 No Member shall do or allow anything to be done in his/her flat, which may cause

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nuisance, annoyance or inconvenience to other Members of the Association or carry-on practices which may be repugnant to the general decency or morals of the Members of the Association. The Executive Committee shall be competent to either Suo-moto or on receipt of a written complaint from any resident/occupant to take steps including legal action to stop all such practices mentioned above.

- 12.5 No Member shall engage in any illegal/unlawful activity including any act of violence in the MVV City premises.
- 12.6 Every Member shall use the common areas and facilities for the purpose for which they are intended without hindering or encroaching upon the lawful rights of the other residents..
- 12.7 No Member shall make any structural modifications or alterations in his/her flat without prior written permission from the Association.
- 12.8 All the Flats/ shall be strictly used for residential accommodation for families only. The Flat should not be let out for bachelors and for the purpose of guest houses. Providing accommodation on commercial basis such as service apartments and the accommodation sold to the patrons on rental basis are strictly prohibited.
- 12.9 Every Member shall comply with the rules and regulations decided by the Executive Committee/General Body from time to time for the accomplishment of the aims and objectives of the Association. Failure to comply with any of those rules and regulations shall be a ground for action by the Executive Committee to seek relief or recover damages and also to initiate appropriate legal proceedings as deemed fit on the violating or the defaulting member after giving 15 days notice in general cases and 5 days notice in urgency cases.
- 12.10 No Member of the Flat shall undertake any Commercial activity and have offices in his/her Flat. However, educational activities (Tuition, Music, Dance etc...) are allowed strictly to the children of MVV city Residents with the written permission of the Executive Committee.
- 12.11 Every Member shall intimate the contact details and other particulars to the Association Office in the prescribed format and update the changes, if any, from time to time.
- 12.12 On commencement of tenancy, lease or caretaker status, the concerned Member (Owner) shall notify to the General Secretary of the Association his intention to do so along with the details of the tenant/lessee in the form as prescribed (Form "G").
- 12.13 Prior to the termination of the tenancy, lease or caretaker status of an Associate Member, the concerned Member (Owner) shall intimate to the General Secretary of the Association, his intention to do so in the form as prescribed (Form "H").

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- 12.14 Every Member is expected to carry out promptly all maintenance and such repair works within his/her own flat which will affect the flats belonging to other owners in their entirety or in part, and shall expressly be liable for any damage that may be caused to the flats belonging to other owners or to the common amenities because of his/her failure to do so.
- 12.15 All the repairs and installations for supply of water, power, disposal of sewage, telephones, air conditioners, sanitary installations doors, windows, lamps and all other accessories belonging to and within the boundary of the apartment shall be at the expense of the flat owner concerned and such repairs and installations shall be properly done.
- 12.16 Owners shall be liable for the payment of all taxes including property taxes or any other taxes that will be levied from time to time by the state/central government or local bodies from time to time in respect of the Residential Flat.
- 12.17 Even if the Flat of any Member is vacant for any period, the maintenance charges levied by the Association shall be paid irrespective of the occupation of the Flat
- 12.18 The owners/residents shall not at any time divide or cause any damage to the premises by way of demolition of the premises or any part thereof and shall not at any time make or cause any additions or alterations of whatsoever nature to the premises or any part thereof, and not take up any alteration in the elevation and outside color scheme of the said premises and apartments. The owners/residents shall keep the outside of walls, sewer drains and pipes in the said premises and apartment in good condition so as to support and protect the other parts of the building and shall not chisel or in any other manner damage the columns, beams, walls, slabs, stair-cases or other structures in the said premises without the prior written permission of the Executive Committee.
- 12.19 Any modifications in the common areas, stair cases, passage ways require the approval in writing and without receipt of the written approval from the General Body duly approved by more than 50% of total Members of the General Body as a policy, no individual shall execute any modification.
- 12.20 The owners shall reimburse the Association for any expenditure incurred for repairing or replacing any facility damaged within the common area through any fault of his/her part and or for damages caused by his/her tenant and the same will be recovered as if it is a debt recoverable by the association. The quantum of amount decided by the Executive Committee of the association shall be final and conclusive.
- 12.21 An owner shall grant the right of entry to the Executive Committee or any Member nominated by the Executive Committee in case of any emergency whether the owner is present or not at that time in case of any major defects affecting the common area facilities is apprehended.

- 12.22 The Bye-Laws and relevant rules as stated in these Bye-Laws and any standing orders issued by the Executive Committee from time to time with respect to the proper use of premises shall be binding not only on Members, their family Members and/or on Associate Members, their families residing in the building but also on their employees, guests and visitors.
- 12.23 The Association shall not be responsible for any loss or damage to the person or property of anyone using the building and its premises and no suit, prosecution or other legal proceedings shall be initiated against the Association or any Office bearer or any employee of the Association in respect thereof.
- 12.24 The Association shall defend Members of the Executive Committee and its Employees in the event of any cases instituted against them (for any activities related to the Association) by having discussion in the Executive Committee whether to defend or not basing on the merits and demerits of the case. The Members and Association shall indemnify the Members of the Executive Committee and Employees of the Association in the event of their suffering any liability or loss on account of claims made by third parties and Members towards damage suffered in normal and legitimate discharge of their duties as per these Bye-Laws and laws of land.

13. FINANCES-INCOME-EXPENDITURE

13.1 CORPUS FUND

- 13.1.1 The amount collected at Rs.50,000/- by the builder from each flat owner at the time of registration of flats which was kept as **corpus fund** with the builder shall be taken over along with the interest accrued thereto by the Association represented by the Executive Committee.
- 13.1.2 For unsold flats if any at the time of handing over the premises the buyer has to pay the corpus fund as prescribed to the association and obtain No Objection Certificate (NOC) from the association without which the builder should not take up the registration of unsold flats.
- 13.1.3 The corpus fund so collected along with interest accrued thereto from the builder and the corpus fund to be collected from the unsold flats should be kept in the Fixed Deposits / Security Bonds earning maximum interest with any Nationalized Banks and the same should be treated as corpus fund of the Association.

13.2 RAISING FUNDS

The funds of the Association shall be raised in the following ways:

- 13.2.1 By maintenance charges from members of the association towards maintenance of the common premises and facilities mentioned in para 2.8 as decided by the General Body from time to time.

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- 13.2.2 Donations and grants from the Residents.
- 13.2.3 The Income from lease-hold rights of common facilities and amenities such as function halls, guest rooms, restaurants, grocery store, bank, medical stores, boutique, pharmacy, saloon, cafeteria and any other stores etc., as decided by the Executive committee by tender system through purchasing committee.
- 13.2.4 Interest on fixed deposit of corpus fund or any other surplus.
- 13.2.5 Amounts collected towards transfer of membership fee on resale of Apartments.
- 13.2.6 And by any other means as may be decided from time to time by the Executive Committee / General Body for implementation of aims and objectives.

13.3 UTILIZATION OF FUNDS

The funds of the Association shall be utilized in the following ways:

- 13.3.1 The funds so raised by the Association shall be utilized towards all the expenses incurred by the Association towards maintenance of common areas, amenities and facilities. This shall also include payment of salaries to the staff employed for the performance of various functions / security measures on a regular/ casual / contract basis and payments to all the contractors to whom the various activities are outsourced by the Association. Expenses towards audit fee, legal fee, water charges, electricity charges and pest control services for common areas and any other charges as approved by the Executive Committee from time to time.
- 13.3.2 The funds of the Association shall be spent only towards the accomplishment of the aims and objectives of the Association and no portion thereof, other than reimbursements, shall be paid or transferred directly or indirectly to any of its members of the association.
- 13.3.3 The Corpus fund lying with Association shall always remain in Fixed deposit/any other long-term deposit / Bonds in any of the nationalized Banks and the interest earned / generated on the same from time to time shall be deposited in recurring deposit/ any other deposit and all such interest shall be utilized only for the purpose of meeting long term expenditure / for replacement of Capital Items such as generators, Elevators, Motors, water pumps, common lawns and landscaping, plants, gates, laying of roads, pipelines, sewerage lines, coloring, painting of exterior of the building, corridors and common areas etc., and if at any point of time such interest generated / earned on the Corpus Fund is not sufficient to meet such expenditure, the residue/deficit required shall be contributed by all the Registered owner in the same proportion in which they contribute the monthly maintenance charges.
- 13.3.4 The funds of the Association when not utilized for the purpose mentioned under these Bye-Laws may be deposited as fixed deposit/any other deposit with any

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nationalized bank/s for appropriate period to be decided by the Executive Committee. Such deposits together with the interest accrued, shall be utilized only for the betterment and maintenance of the flats, common areas etc.

- 13.3.5 The Executive Committee is not entitled to put the corpus fund or any other surplus / funds in any instruments of speculation in nature.
- 13.3.6 The Executive Committee shall not spend any amount over and above the budget approved by the General Body. However, an additional 15% over and above the approved amount may be spent to take care of price fluctuations or other exigencies. Besides in exceptional circumstances such as to comply court directions / statutory obligations / unplanned or unforeseen circumstances the expenditure may exceed the approved amount.

13.4 QUANTUM OF CONTRIBUTION AND PAYMENT

- 13.4.1 The rate at which each member of the association is required to contribute towards maintenance of the common premises and facilities i.e., maintenance charges shall be decided by the Executive Committee from time to time.
- 13.4.2 The monthly maintenance charges as decided by the Executive Committee should be paid by every Member of the association on or before the 10th day of the respective month. For any delayed payment, interest at the rate of 2% per month or at any such rates as may be decided by the Executive Committee from time to time shall be charged extra. Members of the association shall be given the option to make payments monthly/ quarterly/ half yearly or annual up to 2 years. However if Monthly maintenance charges are increased after advance payment the member has to pay the difference amount to the Association by due date,
- 13.4.3 It is the joint and several responsibilities of the Flat owners and Tenants to pay the monthly maintenance charges on or before the due date. Owners of the vacant flats are also to pay the maintenance charges irrespective of occupancy. In case of unsold flats if any, the builder/developer has to pay the maintenance charges till the time the flat is sold.
- 13.4.4 In case of any member of the association being default in payment of the maintenance and other dues, continuously for a period of 3 months starting from the date of issue of notice, together with interest, Executive Body will serve a notice to clear such dues within a period of 15 days starting for the date on which the notice issued. If the member fails to pay the dues even after completion of the above notice period, services like water, electricity, garbage collection, entry to amenities and club and services managed by the Association will be suspended for such defaulted Member until the dues are cleared.
- 13.4.5 The Executive Body shall keep the list of defaulters along with amount due in the

notice board and/or circulate the same to the Members.

- 13.4.6 All amounts payable to the association shall be paid only by way of Demand Drafts, Credit / Debit cards, electronic payment ,UPI payments and Standing Instructions like ECS drawn in favor of “MVV City Flat Owners Welfare Association” payable at Visakhapatnam or through any other mode as may be decided by the Executive Body from time to time.

14. MANAGEMENT

- 14.1 The Ultimate Authority of the Association shall vest in its General Body, which shall be summoned to meet in a manner as specified in these bye-laws.
- 14.2 The day-to-day administration of the Association shall vest in the Executive Body duly constituted in accordance with these bye-laws.
- 14.3 The Executive Body / Executive Committee shall exercise all powers explicitly conferred on it and discharge all functions entrusted to it under these bye-laws.
- 14.4 The Executive Committee shall circulate and display financial statement for every quarter of calendar year However The Executive Body shall on or before 30th June of each calendar year circulate/display in the notice board Audited/Approved financial statement, including a summary of assets and liabilities of the Association, a report on the activities of the Association , capital expenditure details incurred in the previous year and the budget for next financial year.
- 14.5 The Election and tenure of the Executive committee shall be two years with effect from the date of their election or until a new Executive committee is duly elected by the General Body whichever is later. The Outgoing Executive committee shall handover the charge and administration of the Association to the newly elected body within Seven (7) days from the date of declaration of elected body.
- 14.6 Elections for all the Members of the Executive Committee shall be held once in two years.
- 14.7 No Member shall be entitled to vote or to file a nomination or remain as a Member of the Executive Committee, if he/she is disqualified. The reasons for disqualification shall be as follows:
- 14.7.1 He/she has been convicted by honorable courts involving any offence/ moral turpitude.
- 14.7.2 He/she is due any amount to the Association in respect of his monthly Maintenance Charges/ any charges as on the date of filing nomination for his/her candidature to contest in the election / casting vote.

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- 14.7.3 Abstains consecutively for 6 meetings of the Executive Body / Executive Committee without any intimation to the General Secretary .
- 14.8 The Executive Body and the Executive Committee shall periodically meet and take collective decisions. The decision taken by the majority members holds good and minutes of such meetings are to be recorded.
- 14.9 The Office bearers shall hold office for the full term of two years unless 'No Confidence Motion' has been passed against the entire Executive and new Executive Committee has to be elected for the next full term. A 'No Confidence Motion' shall be deemed to have been passed only when more than 2/3rd of the total Members in the General Body Meeting voted in favor of No Confidence motion.
- 14.10 Any decisions and resolutions passed by the Executive Body / Executive Committee shall be by way of simple majority. Every Member of the Executive Committee shall have only one vote. Further the minimum quorum for the meeting of the Executive Body / Executive Committee shall be more than 1/3rd of the total Strength of the Executive Body / Executive Committee.
- 14.11 The meeting of the Executive Body shall take place at least once in a week and the meeting of Executive Committee shall take place at least once in a month preferably on a Sunday/Public Holidays. The meeting can be requisitioned either by General Secretary or at least Four (4) Members of the Executive Body. There must be a minimum of 7 days prior notice for meeting except in case of emergency.
- 14.12 A Member of the Executive Committee may resign from the Membership of the Executive Committee by addressing a letter to the General Secretary or President. The resignation will be effective on acceptance by the President or on expiry of 30 days from the date of resignation whichever is earlier. In case the President resigns the Executive Committee has to accept.
- 14.13 Any vacancy in the Executive Committee caused by resignation or disqualification or otherwise, may be filled-in by the Executive Committee by passing a resolution by majority or by way of co-option of any other eligible Member of the Association. The period of office of the co-opted member shall be co- terminus with the residue tenure of office of the Executive Committee. If at any point of time, the total strength of Executive Committee is reduced to 50% of the total strength (i.e., minimum quorum), the Executive Committee automatically gets dissolved and fresh elections shall be conducted and until new Executive Committee getting elected such Executive Committee shall continue to act as a Care Taker Executive Committee.
- 14.14 The first time newly elected Executive Committee has to take over from builder all the records of assets, documents and obtain the copies of permissions of the statutory Bodies related to ground water, bulk water supply, electricity and other amenities. The registration documents, land records pertaining to MVV City, details of plans and

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approvals, accounts, etc., are to be taken from the builder by the newly elected Executive Committee.

15. DUTIES AND RESPONSIBILITIES OF EXECUTIVE COMMITTEE

- 15.1 The Executive Committee shall discharge the functions and duties as per these bye-laws including, as under.
 - 15.1.1 To determine the quantum of amount payable by Members towards monthly maintenance charges and other charges from time to time.
 - 15.1.2 To determine the rates of interest to be charged from defaulting Members in payment of monthly maintenance and any other contribution towards raising of funds.
 - 15.1.3 To consider and decide on matters towards expenditure on repairs and maintenance.
 - 15.1.4 To consider and decide upon matters brought up by a Registered Member/Owner member/Associate Member pertaining to the affairs of Association.
 - 15.1.5 To review the position of recovery of dues to the Association and to decide and initiate action against the defaulting Member.
 - 15.1.6 To ensure holding of annual meeting of the General Body within the prescribed period.
 - 15.1.7 To call a special meeting of the General Body as and when required.
 - 15.1.8 To review the audit report and place the audited accounts before the General Body.
 - 15.1.9 To take steps to maintain the common premises and facilities in clean and good condition of repair.
 - 15.1.10 To lay down necessary rules and norms for the users of the building Complex & premises, with a view to maintain cleanliness, safety, security, privacy and comfort of the residents/occupants.
 - 15.1.11 To appoint, suspend, remove or discharge any employees of the Association and fix their duties, remuneration etc.
 - 15.1.12 To enter into contracts with various contractors for outsourcing any works pertaining to MVV City maintenance, including the power to cancel, renew, and amend such contracts. Bids should be invited from at least three vendors by publishing in newspapers / online and contract may be awarded after due evaluation viz. experience/performance quality, price, etc.
 - 15.1.13 To discuss/decide/call for explanation/issue notices to a Member/Associate

Signature of the President/Secretary

Member on Suo-Moto where the actions of the Member/Associate Member are in violation of Bye-laws.

- 15.1.14 To perform such other functions as assigned from time to time by the General Body and to exercise such powers as are necessary to carry out those functions.
- 15.1.15 To do all such acts or things which the Executive Committee may consider necessary for the accomplishment of the aims and objectives of the Association.
- 15.1.16 To maintain proper books of accounts and get the same audited on yearly basis.
- 15.1.17 To appoint any Legal Adviser / Advocate or any other consultant for rendering services.
- 15.1.18 To represent before any Authorities like Statutory Authorities, Honorable courts, forums, Government etc., in respect of affairs of the Association.
- 15.1.19 To take action against defaulters in payment of maintenance charges and to protect the property and amenities of the MVV City complex.
- 15.1.20 To deal with the corpus fund and other funds of the Association in a manner as provided in the Bye-Laws.
- 15.1.21 To deal with the banks, to open Bank Accounts, to Operate and close the same.
- 15.1.22 To deposit the corpus fund with any Nationalized Bank earning maximum rate of interest and to deposit interest earned on Corpus Fund in to recurring or other deposit account and to utilize such interest amount for meeting capital expenses.
- 15.1.23 To keep an updated register of Members of the Association;
- 15.1.24 To keep true account of assets and liabilities of the Association;
- 15.1.25 To prepare and lay before the General Body meeting, the annual Income and Expenditure account and audited balance-sheet.
- 15.1.26 To examine the accounts, sanction contingent and other expenditure and supervise the maintenance of the prescribed registers.
- 15.1.27 To admit new Members/Associate Members in place of the existing members/associate members in the event of re-sale/ new tenancy.
- 15.1.28 To institute a fact-finding committee in the event of any dispute arising due to undue, unwarranted, illegal activities perpetrated by any member/s or the officer/s or employee/s of the Association to conduct, defend, compromise, refer to arbitration or avoid legal proceedings by or against the Association or Executive Committee or the officers or employees concerning the affairs of the Association

Signature of the President/Secretary

as advised by the fact finding committee.

- 15.1.29 To deposit the surplus of the Association funds (if any) in accordance with the terms of the Bye-Laws in Nationalized Banks.
- 15.1.30 To fix and levy the user charges or other charges payable by the members/Associate members for availing any of the facilities/services offered in the club house and in respect of common facilities and also to fix and collect rent / charges from the facilities/service providers in the complex including the two club houses.
- 15.1.31 To obtain fire / general insurance for the assets of the Association including cash in hand/cash in transit.
- 15.1.32 To select and appoint any office staff on a merit basis through the recruitment process.
- 15.1.33 To appoint any persons from the Executive Committee or from among the Members of the Association to constitute Sub- Committees to ease functioning the administration ,such as audit committee, club house committee, security and housekeeping committee, landscaping committee, sports committee, cultural activities committee, Temple Committee etc., and delegate to it or any officer of the Association such of its own powers as it may consider desirable and necessary for the better conduct of the affairs of the Association. The Sub-Committees or officers shall discharge the functions entrusted to them conform in all respects to these Bye- Laws and to the instructions given by the Executive Committee. All services of such appointed members of sub-committees are not paid any remuneration.
- 15.2 All matters discussed or decided at a meeting of the Executive Body/ Executive Committee are recorded in a proceedings book which shall be signed by the President / Chairman of the meeting and all the Members present.

16. DUTIES AND RESPONSIBILITIES OF OFFICE BEARERS

Subject to any resolutions as the Executive Body or the General Body may pass in this regard from time-to-time, on taking over of the charge of administration of the MVV City flat owners welfare association, the office bearers of the Executive Body shall perform the following duties and responsibilities as detailed below:

16.1 President

- 16.1.1 The President shall exercise general control and overall supervision of the affairs of the Association and the Executive Body and Executive Committee as defined in the Bye laws. He/she shall with the approval of the Executive Committee make arrangements for the safe custody of cash and other movable properties of the Association.

Signature of the President/Secretary

- 16.1.2 He/she shall preside over the meetings of the General Body, Executive Body, Executive committee.
- 16.1.3 He/she and Secretary shall operate the Association's Bank account jointly with the Treasurer as stipulated under these Bye-Laws.
- 16.1.4 He/she shall approve or disapprove any financial transaction through a note file put up by the Secretary.
- 16.1.5 The President is responsible to deposit the received cash by any means in the bank account within 48 hours .

16.2 Vice President

- 16.2.1 The Vice President shall assist the President in all acts, deeds and things as may be required for administration of the affairs.
- 16.2.2 In the event of the President being unavailable for whatsoever reason for a period less than 15 days the Vice President will preside all meeting and execute all day-to-day administrative responsibilities and if the President is absent for a period more than 15 days the Vice-President will act as President with all Presidential powers.
- 16.2.3 In the event of the President and Vice President both being unavailable, the Executive Committee should choose anyone from the Executive Body to act as the President.

16.3 Secretary

- 16.3.1 The Secretary shall be responsible for overseeing the day-to-day over all administration of the affairs of the Association.
- 16.3.2 He shall summon and attend all meetings of the Executive Body, Executive Committee and the General Body as stipulated in these Bye-Laws.
- 16.3.3 He shall instruct, supervise, help and guide the Managers/entire staff of the Association/Contractors engaged to implement the decisions of the Executive Body and the General Body.
- 16.3.4 He shall prepare the agenda and the minutes of all the meetings. He shall be the in-charge of all the files and records of the Association. He shall be responsible for the implementation of any decision taken for the execution of any task assigned by the Executive Body. He shall also perform all duties pertaining to the office of the General Secretary.
- 16.3.5 He/she and President shall operate the Association's Bank account jointly with the Treasurer as stipulated under these Bye-Laws.

Signature of the President/Secretary

- 16.3.6 He shall act and do all things necessary as directed by the Executive Committee from time to time.
- 16.3.7 He shall sign all purchase orders/contracts and other documents after obtaining due approval of the Executive Committee.
- 16.3.8 He shall maintain the correspondence of the Association entrusted to him by the Executive Committee.
- 16.3.9 He shall place before the General Body the annual budget, proposals and amendments etc. for consideration. He shall present audited annual report and financials to the Registrar of Societies including the payment of necessary fee.
- 16.3.10 He shall generally assist the President in discharge of his functions as such.
- 16.3.11 He shall maintain the register of the apartment owners. All files relating to the Association and club house, lease agreements of common areas if any, documents connected with the award of contracts and shall conduct normal and day to day functions of the administration of the Association.
- 16.3.12 He shall be the custodian of all the documents, records of the association except the documents/ records under the custody of the treasurer.

16.4 Joint Secretary

- 16.4.1 The Joint Secretary shall take the place of the Secretary and perform his duties whenever the Secretary is absent or unable to act. The joint Secretary shall assist the Secretary in all acts, deeds and things as may be required for administration of the affairs.
- 16.4.2 He shall help General Secretary to prepare the minutes of all the meetings and in discharging all the functions of Association.

16.5 The Treasurer

- 16.5.1 The Treasurer shall be responsible for association funds and securities, and shall maintain books of accounts by keeping full and accurate accounts of all receipts and disbursements of the Association. He shall cause the accounts to be maintained properly, supervise money, deposits and valuables.
- 16.5.2 Issue receipts for the contributions received from the Members / Associate Members either himself or by Staff as authorized by the Executive Body.
- 16.5.3 Do all such things as are required of him/her by the Executive Body or General Body towards the accomplishment of the objects of the Association.
- 16.5.4 He shall operate the Association's Bank account jointly, as stipulated under the Bye – Laws.

Signature of the President/Secretary

- 16.5.5 He shall be authorized to pay all outgoings from the association by way of cheques and where it is not possible to pay by way of cheques, he is empowered to pay the outgoings by way of cash not exceeding Rs.5,000 (Rupees five thousand only) in each transaction or as decided by the Executive Committee from time to time and also to maintain imprest amount in cash.
- 16.5.6 He shall be responsible for depositing all money, other valuable effects in the name and to the credit of the Association in such depositaries as decided by the General Body or the Executive Committee as the case may be.
- 16.5.7 Follow up collections of all dues and maintain correspondence thereof.
- 16.5.8 Assist the Secretary in framing the budget.
- 16.5.9 Maintain daily cash book, ledger and other books of accounts, all reports for audit, monthly reconciliation statement and all other necessary records, balance sheet of assets and liabilities.
- 16.5.10 Submit all the above records monthly to the Executive Committee.

16.6 Joint Treasurer

- 16.6.1 The Joint Treasurer shall take the place of the Treasurer and perform his duties whenever the treasurer is absent or unable to act. The joint treasurer shall assist the treasurer in all acts, deeds and things as may be required for smooth administration of the affairs.
- 16.6.2 The Joint Treasurer shall be coordinating with the Treasurer in overseeing the accounts to be maintained properly, supervising monies, deposits and valuables.

16.7 Block Executive Member From Block A to L also termed as 1 to 12

- 16.7.1 Each block will have one Block Executive Member duly elected by the members of the respective block only, and functions within the purview of the MVV City Bye-Laws.
- 16.7.2 The Block Executive Member may elect/appoint their own committee from among the members of the respective Block to look after various functions and organizing events in their respective Blocks within the purview of the MVV City Bye Laws.
- 16.7.3 The Block Executive Member is responsible for overseeing the peaceful atmosphere in their Block.
- 16.7.4 The Block Executive Member is responsible to pursue the defaulters of the monthly maintenance charges or any other such dues.

17. OPERATION OF BANK ACCOUNT/S OF THE ASSOCIATION

Signature of the President/Secretary

- 17.1 The Executive Committee shall approve, and the President, Secretary and Treasurer shall be authorized to open the Bank accounts of the Association jointly. However, any transaction of those bank accounts shall be jointly signed by the Treasurer and either President or Secretary.
- 17.2 For all financial transactions a note file has to be put up by the Secretary and has to be approved by the President.
- 17.3 As per the decision taken by the Executive Committee:
 - 17.3.1 Planned recurring expenditure such as salaries of the employees, electricity and water bills etc and expenditure proposed and approved in the General Body shall be spent observing the standard procedures.
 - 17.3.2 Un-planned expenditure up to an amount of Rs 50,000/- (this amount is subject to revision from time to time in the General Body) for each work/item may be spent depending upon the unforeseen requirement arising and which cannot wait till next Annual General Body.
- 17.4 Withdrawal of cash from the bank accounts per day shall not exceed an amount of Rs.10,000/- (Rupees Ten thousand only). At any point of time cash in hand shall not exceed Rs.20,000/- (Rupees Twenty thousand only) unless there are any payments which requires to be made only in cash.
- 17.5 All cash receipts, if any, shall be deposited in the bank latest by the next day of collection and such cash receipts shall not be used for any expenses.
- 17.6 Temple funds raised by way of donation ,hundi collection, Balance remaining after completion of festivals are to be deposited in Separate Bank account referred to as Temple Account as decided by the Executive Committee. And this Account is operated by Secretary & Treasurer and this amount is to be spend for Temple Purpose only as approved by Executive Committee.

18. DISCIPLINARY ACTION

- 18.1 A fact-finding committee consisting of members other than the Executive Committee shall be instituted by the Executive Committee to investigate any alleged financial frauds or misconduct of any member of the Executive Committee.
- 18.2 In the event of any fraud committed by the members of the Executive Committee including any misappropriation, they are subject to disciplinary proceedings and legal actions as per the laws of the land.
- 18.3 In the event of the members from a block not having confidence in their respective Block Executive Member, the same be informed in written to the Secretary, signed by atleast 50% of the members of that block. The Executive Committee on receiving such

Signature of the President/Secretary

letter can expel that Block Executive Member and replace the same position by a newly elected Block Executive Member.

19. DUTIES AND RESPONSIBILITIES OF THE GENERAL BODY

- 19.1 Ultimate Authority in all matters relating to the administration of the Association shall vest in the General Body. However, it shall not in the normal course interfere with the powers & responsibilities delegated to the Executive Body, block committees and sub-committees. The following among other matters, shall be dealt by the General Body:
 - 19.1.1 To review the actions taken to implement the decisions of the last Annual General Body meeting or the last Special General Body Meeting held, if any.
 - 19.1.2 To consider and approve the annual report submitted by the Secretary along with the audited statement of accounts submitted by the Treasurer and review the working of the Executive Body and Executive Committee
 - 19.1.3 To appoint Auditor and fix their remuneration.
 - 19.1.4 To consider the auditor's report and decide on remedial measures, if any.
 - 19.1.5 To amend the existing bye-laws as and when necessary, the Executive Committee in consultation with the Bye laws committee will prepare and table such amendments in the General Body for approval. Any such amendments to these bye-laws shall be considered and approved in a duly constituted meeting. 1/3 quorum of the total members is required for conducting the meeting. No amendment shall take effect for approval unless approved by more than 2/3rd of the total Members of the association attended for such meeting. These amendments will come into effect only after the approval of the district registrar of Registrations and Stamps.
 - 19.1.6 To consider any important issue(s) that may be tabled by the Executive Committee for the decision of the General Body.
 - 19.1.7 To approve withdrawal of accumulated interest on CORPUS FUND and mode of utilization thereof and for such purpose more than 50% of the total Members attended the meeting subjected to the 1/3 quorum of the Association shall vote in favour of such withdrawal and mode of utilization.
 - 19.1.8 To prescribe penalties for any breach/breaches of the bye-law or rules made there under committed by any Member/Associate Member or person connected with him/here.
 - 19.1.9 To consider any other matter, excepting that requiring proper notice, with the permission of the chair, after the regular agenda is over.
- 19.2 The Annual General Body meeting of the Association shall be held on or before 31st

Signature of the President/Secretary

day of July of each year at MVV City or any other place in Visakhapatnam.

- 19.3 A Special General Body Meeting of the Association may be called at any time at the instance of the Executive Body for any specific and emergency purposes and the meeting so convened shall not transact any business other than that mentioned in the notice of the meeting.
- 19.4 A Special General Body Meeting of the Association shall be called at any time on receipt of a requisition signed by at least 1/5th of the Members of the Association sent to the General Secretary stating in writing the matter on which deliberations are to be made. The requisition for Special General Body meeting received from the Members of the association shall within 7 days of its receipt be placed before the Executive Body by the Secretary for fixing the date, time and place for the Special General Body meeting. However, the Executive Body shall call for such Special General Body meeting within 14 days from the date of requisition placed before the Committee and such meeting be preferably held on public holidays.
- 19.5 The Executive Committee shall decide the date, time and place for all General Body meetings within 21/30 days of prior notice to all the Members of the Association.
- 19.6 On the day of issuing of the notice of the General Body meeting, the Members register will be recorded and closed for the purpose of sending notices to all the eligible Members and out of those Members who are present in the meeting will only be eligible to cast their votes and such Member should be eligible to be a member on the day of the meeting of the General Body. This eligibility criterion is also applicable for any decision to be taken by the General Body without any exceptions.
- 19.7 The Executive Body shall compile and record the minutes of every General Body meeting within a week from the date of the meeting and a copy thereof will be displayed on the notice boards at the MVV City Association Office and at the Blocks by the Secretary.
- 19.8 The accounting year of the Association shall commence from 1st April and end on the 31st March. However, the first accounting year will end on 31st March of the Financial Year in which the developer hands over the maintenance to the Executive Committee.

20. ELECTION OF THE EXECUTIVE COMMITTEE

- 20.1 There shall be an election held once in every two years for the Association,
- 20.2 The Executive Committee shall appoint an election committee who are the competent and experienced Members of the association for smooth conduct of elections of the office bearers and 12 Block Committee Executives. Such appointed Election Committee shall conduct and declare the results of the elections whenever due in that year.
- 20.3 The Election Committee shall be assisted by the existing office staff in the process of

Signature of the President/Secretary

conducting the elections. The notification and results of elections shall be informed to the Registrar of Societies, Visakhapatnam where the Association is registered.

- 20.4 Any member of the Executive Committee shall not contest for any position in the Executive Committee for more than two consecutive terms.
- 20.5 The candidates who secure the highest number of votes shall be declared elected for the respective offices. In the event of more than one contestant securing same number of votes for the same post only one among them will be declared elected by conducting draw of lots by the election officer in the presence of the said contestants.
- 20.6 In the event of dissolution of the Executive Body before the expiry of its tenure, the election shall be held within 30 days thereof.
- 20.7 The voting in election shall be by way of secret ballot /Electronic voting.

21. CONTESTING AND VOTING

- 21.1 All eligible Members of the Association may participate in the General Body Meeting.
- 21.2 Eligibility Criteria for a member to contest for any post in the Executive Committee is that he/she must be an member of the Association and he/she must be residing in MVV City and shall meet other eligibility conditions as per the bye-laws.
- 21.3 Only eligible Member shall cast their vote in favor of a candidate of his/her choice in the election of the Executive Committee.
- 21.4 A Member who is entitled to vote at the General Body meeting can appoint his/her parent or a son or a daughter or spouse as proxy to vote on his behalf. In order to be effective, Proxy Forms must be received and acknowledged by the Executive Body not less than 48 hours before the scheduled time of the meeting.
- 21.5 Corporate Entities owning a flat intending to send their authorized representatives, are required to send a duly certified copy of the Board / Governing body resolution authorizing such representatives to attend and vote at the General Body meeting along with proxy letter.
- 21.6 At a General Body meeting every Member shall have one vote for each flat owned by him. In the event of his absence, a proxy of the Member (holding an authorization as per Form – “F” duly signed by the Member) is entitled to cast vote. However, such proxy/Member will be allowed into the meeting hall by duly verifying the identity through submission of one of the following proofs with photo identity: (a) Passport (b) Driving License issued by the competent authority (c) Voter identification card (d) Ration card I PAN card (f) Aadhar Card or any other photo identity proof issued by the Government authorities.

Signature of the President/Secretary

- 21.7 Minutes of such general body meeting / Results of the election shall be displayed on all the notice boards in the MVV City complex within two (2) days after such meeting.

22. REGISTERS

The following registers and papers shall be maintained and produced for perusal by any member only during the office hours after obtaining the permission of the Executive Body.

- 22.1 A register of Members, showing the name, address and occupation of every Member, the date of admission as a member, date of termination of Membership and signatures of the Members.
- 22.2 Books of Accounts maintained by the Association, Vendors agreements and other contracts.
- 22.3 Minutes book.
- 22.4 All the records including Books of Accounts, Assets and Liability, a general stock register indicating the movable properties of the Association, Minutes, Agreements, Approvals, Licenses, Permissions etc. will always be secured in the registered office of the Association.
- 22.5 To maintain To ensure annual stock verification of all movable and immovable properties of the Association

23. PERIODICITY OF MEETINGS

- 23.1 The periodicity of the meetings shall be as follows

S. No	Name of the Committee/Body	Periodicity	Remarks
1	Annual General Body Meeting	Once in a Year	
2.	General Body Meetings	Once in six months	However, additional meetings if any may be conducted at a mutually agreed time and date as
3.	Executive Body Meetings	Once in every week or as necessary	
4.	Executive Committee	Once in every month or as necessary	

Signature of the President/Secretary

5.	Other Committees	As necessary	situation demands
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23.2 Meetings as per the Table in Para No.23.1 shall invariably be conducted to ensure better functioning of the Association. The Executive Committee has to ensure the smooth conduct of the Meetings as per schedule. The Executive Committee is answerable if they fail to conduct the meetings as above.

24. QUORUM FOR MEETINGS

- 24.1 Executive Body and Executive Committee meeting shall have minimum 50% of members out of all members to form a quorum for such meetings.
- 24.2 For any other Committees formed by the Executive Committee including sub-Committees the quorum will be simple majority.
- 24.3 For Special and Annual General Body Meetings the quorum is 1/3rd of the total Members of the association. If there is no quorum at the notified time, the meeting will be adjourned by a maximum of two hours and the meeting will be reconvened the same day. When the meeting is re-convened and if the quorum is not achieved, the meeting shall be continued as if the quorum is achieved.

25. RULES OF THE ASSOCIATION

ALL THE MEMBERS/ASSOCIATE MEMBERS SHALL ABIDE THE FOLLOWING RULES OF THE ASSOCIATION:

25.1 PAYMENTS POLICY

- 25.1.1 All the Members/Associate Members shall regularly pay all dues including monthly maintenance charges to the Association from time to time on or before due dates
- 25.1.2 In the event of default of any dues, the Association shall initiate all actions as per these Bye-laws including disconnection of essential services. Further the Association shall take all legal measures as if it is a debt recoverable from the defaulters.

25.2 CLEANLINESS POLICY

- 25.2.1 No refuse/debris should be thrown directly into the open areas. The garbage should be properly packed in recyclable plastic bags and deposited outside the flat entrance so as to enable the collector of Garbage, to dispose-off the same in Municipal dust-bin. No Garbage/dust-bin shall be left outside the flat or in the

Signature of the President/Secretary

corridor.

- 25.2.2 No burning articles like matches, cigarette butts, etc., should be thrown directly in the open areas, in Elevators or into any of the open areas from the balconies/corridors.
- 25.2.3 No Advertisements or Posters of any kind shall be pasted in the Elevators or in or on the Apartments except as authorized by the Executive Body.
- 25.2.4 While washing the flats and watering the plants etc., care should be taken to see that water does not flow out from the balconies affecting the residents on the lower floors, passers-by on the road below, the cars parked and the exterior surface of the building.
- 25.2.5 Drying or hanging of clothes etc, from the windows, on railings of the balconies or the corridors, is prohibited. Flower pots should not be placed on the balcony walls.No material should be dumped in the Block corridor, except footwear box as per the design given by the builder / Association.

25.3 VENDOR & MARKETING EXECUTIVES POLICY

- 25.3.1 Hawkers, vegetable vendors, Video Cassette suppliers and such others, except those authorized by the Executive Body, shall not be allowed inside the Apartments Complex.
- 25.3.2 No person shall be allowed for door-to-door sales/demonstration of any kind of solicitation without the written permission of the Executive Body.
- 25.3.3 Product display/demonstrations/exhibitions/sales shall be permitted by the Executive Body at a specified venue and date, on written request from the manufacturer/sales representatives.

25.4 VEHICLE ENTRY & PARKING POLICY

- 25.4.1 Vehicles (4 wheelers and 2 wheelers) shall be parked only in the allotted parking slots and should be parked in a manner without encroaching upon parking slots belongs to other Members and common areas.
- 25.4.2 Trespassing into others car/scooter parking area will be viewed seriously and penalty (Rs.1,000.00 for 4 wheelers/Rs.500.00 for 2 wheelers) or as decided by the Executive Committee on case to case basis will levy penalty on the trespasser/violator. Outside Vehicles shall be parked only in the places earmarked for visitors parking if provided.
- 25.4.3 Parking places shall be used only for parking and no articles shall be stored in the parking areas and no washing of vehicles is allowed in parking areas and however the vehicles can be washed in the pre- designated wash areas.

Signature of the President/Secretary

- 25.4.4 The maximum speed limit for vehicles inside the premises shall be 10 kilometers per hour. Speeding' and overtaking of vehicles is strictly prohibited. No horns shall be blown inside the premises. Management may impose the penalties for such violations.
- 25.4.5 The Association will provide residents with vehicle stickers and ID cards. Entry of vehicles into the MVV CITY Complex without stickers will not be permitted. Residents are required to furnish make and model of both two and four-wheeler vehicles along with their registration numbers.
- 25.4.6 No outdoor sports/ games and activities are allowed in cellar parking that can damage parked vehicles or apartment.
- 25.4.7 No Member/Associate Member shall rent or lease parking space allotted to him in MVV City to a person not residing in the complex.
- 25.4.8 No vehicle(s) will be permitted to move in the common areas except in cellar parking area. No vehicles are permitted to be parked in common areas.

25.5 PET POLICY

- 25.5.1 The owners of pets shall abide by the municipal sanitary guidelines and regulations.
- 25.5.2 It is the responsibility of the Pet owner to get the particulars of the pet registered with the Association on payment of a registration fee as decided by the Association.
- 25.5.3 The owner of the Pet should submit the vaccination certificate of pets periodically as prescribed in the guidelines and regulations.
- 25.5.4 Each pet shall be tagged for identification purposes. Pets shall not be left alone to move around unattended in common areas and always be accompanied by their owners/care taker.
- 25.5.5 Pets are allowed entry in pre-designated cargo Elevators only. Pets are not allowed in the lobby area, shall not be tied in corridors and should not move on the lawns and defecate in the common areas.
- 25.5.6 The Pet Owner should ensure that the pets do not sit on the lobby furniture and benches in common areas. Pets are not allowed to be taken into any club houses and amenities or temple or sports facilities.
- 25.5.7 The Pet owner should invariably muzzle their pet when taking them in the common area.
- 25.5.8 In the event of receiving any complaint from any resident/s about the pets causing inconvenience and disturbance to their peaceful living and any violation by the pet

Signature of the President/Secretary

owners will be viewed seriously and a fine as decided by the Executive Committee from time to time shall be imposed and collected from the offender after conducting a meeting between the pet owner and the affected party/ies.

- 25.5.9 It is the responsibility of the pet owner that any discharge/defecation, urination by the pets should be removed and the affected area should be cleaned/sanitized thoroughly.
- 25.5.10 Any violation in this regard will be viewed seriously and the owner of the pet will be fined (Rs.1,000.00 per each violation) as decided by the Executive Body
- 25.5.11 Pets should not be washed / bathed in the common areas.

25.6 MAINTENANCE AND REPAIR WORKS POLICY

- 25.6.1 Every owner shall attend promptly to all the maintenance and repair works within his/her own Flat. This is purely outside the purview of the association.
- 25.6.2 All the repairs to internal installations of the dwelling shall be at the expense of the Apartment Flat Owner concerned.
- 25.6.3 In the event of seepage occurring in one unit/Flat and affecting a appurtenant / unit below or block, the affected party should put in notice to the other owner. Cost of repair and restoration will be borne by the owner of the unit/Flat from which the seepage originates, and such repairs will be completed at the earliest and shall not exceed 15 days. Seepage originating in common areas and is not originating from any flat will be the responsibility of the Association.
- 25.6.4 An owner shall reimburse the Association any expenditure incurred in repair or replacement of any common area facility or fittings damaged through his/her fault.
- 25.6.5 Structural changes within a dwelling unit that involves tampering with walls, removal of load bearing columns and beams are strictly prohibited. All wires entering dwelling units will be through designated conduits only.
- 25.6.6 Repairs / maintenance works / inside of flats will be undertaken between 6.00 AM to 6.00 PM Monday to Saturdays. Sundays are to be observed as holidays. Residents shall not carry out wood work in front of their apartment entrance, clutter/deface stairways, Elevators, corridors, balconies, stilt parking and other common areas with flowerpots, furniture packing materials, boxes etc.
- 25.6.7 No structure temporary or permanent such as wall, iron fencing or barricade of any type shall be erected in the common areas by any Member / resident.
- 25.6.8 A resident shall grant right of entry to his/her dwelling unit to the Estate Supervisor or Manager or to any other person authorized by the Executive Body in case of any

Signature of the President/Secretary

emergency. The Executive Committee is to ensure safety of premises till it is handed back to the occupant.

25.7 RENTAL POLICY

- 25.7.1 A Member may rent or lease his apartment for residential purposes to families only. The tenant and his dependents are required to abide by the Bye -Laws and Rules of the Association.
- 25.7.2 To ensure that the tenants are carefully vetted and submit Form-A as per Annexure to these bye-laws duly filled in to the Association and concurrence shall be obtained from them in writing prior to entering in to rental agreement with prospective tenant. The Executive Committee reserves the right to approve/ disapprove and shall provide the reasons in case of disapproval.
- 25.7.3 All residents, who want to shift out of the complex are required to obtain “No Due Certificate” and shall obtain an out pass seven days in advance. The Association shall be approached for the use of freight Elevators during moving in/out vehicles carrying heavy baggage of residents. Such vehicles will not be allowed to enter / exit without in/out pass issued by the Association and vehicles shifting articles shall not be allowed between 6.00 PM and 6.00 AM or during any other time to be notified by the Executive Body.

25.8 DOMESTIC HELPLERS POLICY

- 25.8.1 Domestic help / Drivers and other employees should furnish personal details and two passport size photographs to the manager for issuing passes/ID Cards at owners’ request and the Member/Associate Member should inform the office of the Association immediately, if such employee ceases to work with the Member/Associate Member.
- 25.8.2 Residents should check whether their domestic helper possesses a valid pass. Domestic helper should also furnish a no objection letter from a previous employer if shifting from one flat to another within the complex.

25.9 MISCELLANEOUS

- 25.9.1 Lease Hold/Commercial area like function halls, saloons, restaurant, grocery shops, bank, and other amenities are exclusively for the use of residents of MVV City only. No outsider are allowed for security reasons.
- 25.9.2 No person shall be allowed to stay/sleep in the common areas or in the vehicles during night times except under special circumstances for which Executive Body’s permission will be necessary.
- 25.9.3 Municipal water if provided shall be used only for drinking and cooking purposes.

Signature of the President/Secretary

- 25.9.4 Firing of crackers or any other articles of fireworks within the MVV City premises, inside the flats, in common corridors, staircases, Elevators etc., are strictly prohibited. Special arrangements to fire crackers during Deepavali/special occasion will be made and all residents and their wards are requested to follow strictly the instructions issued by the Executive Body, every year in this regard.
- 25.9.5 Smoking, spitting of paan, consumption of liquor & drugs in the Corridors/stair cases/Common Areas/Cinema Theatre/Elevators etc., is strictly prohibited. possession /consumption of drugs is strictly prohibited.
- 25.9.6 Elevators should not be overloaded. Heavy and oversize articles should not be carried in the Elevators and further the Elevators shall be used for designated purposes.
- 25.9.7 Residents shall exercise extreme care about making noises or the use of musical instruments, radios, TVs and amplifiers that may disturb others.
- 25.9.8 The terrace/roof top of the block is out of bounds for all residents including children. Access is permitted only to technical staff of the Association for maintenance related works.
- 25.9.9 Garments, rugs, linen etc hung out to dry in the balconies are not to protrude outside the building or on the railings of balcony. Flower pots and other objects are not to be hung from balcony roof or placed on the parapet walls.
- 25.9.10 All residents are requested to conserve water when using for domestic purposes as well as for car washing. Cars are allowed to wash only at notified car washing areas and shall not be washed in the allotted car parking areas.
- 25.9.11 No painting of walls in the Balconies and corridors is allowed to protect the aesthetics like color scheme and elevation and overall appearance of the complex. If any Member requires the balcony/corridors walls to be painted, the request can be made to the Association and an estimate of costs will be provided by the Association at the earliest. Upon payment of the amount in advance by the Member, the painting will be carried out by the Association.
- 25.9.12 No Member/Associate Member or their representative shall directly interfere, suggest, use the Members of maintenance staff, contractors including security personnel. However, they can request for the services for their own flats viz., plumbing, electrical and other maintenance issues by intimating to the maintenance office/ the help desk.
- 25.9.13 When the Elevators are operated without an attendant and as power failures are common, parents and guardians residing in or visiting the building are strongly advised not to allow their minor children below the age of 10 years to use the Elevators without an adult escort.

Signature of the President/Secretary

- 25.9.14 Every owner or tenant or occupant of a flat is advised to take necessary fire prevention measures and provide fire fighting devices in the premises occupied by him.
- 25.9.15 Every Member/Associate Member is advised to insure his premises and house-hold goods and valuables against theft, flood, earthquake, fire, etc.,
- 25.9.16 The Executive Committee will govern the use of lawns, courtyard between the four blocks, recreation facilities like tennis, badminton, basketball, children playing area and other common amenities. The Members/Associate Members will have the priority over the friends and relatives of the Members/Associate Members in using the above amenities. All Members/Associate Members and their representatives abide by the rules when using the above amenities.

26. WAIVERS

- 26.1 The failure by the Bye Laws Committee to include any phrases or any terms and conditions in the bye-laws of the association should not be understood as waiver of them. The Bye Laws Committee with the approval of the General Body has the right at any time to include any such terms and conditions of the bye-laws which are not covered earlier and hence not limited to.

27. AMENDMENT OF BYE-LAWS:

- 27.1 To amend the existing bye-laws as and when necessary, the Executive Committee in consultation with the Bye laws committee will prepare and table such amendments in the General Body for approval. Any such amendments to these bye-laws shall be considered and approved in a duly constituted meeting. No amendment shall take effect for approval unless approved by more than 2/3rd of the total Members of the association attended for such meeting subjected to quorum as detailed in para 24.3 of this Bye-Law
- 27.2 Every amendment in the bye laws of the association should be sent to the Registrar. These amendments will come into effect only after the approval of the district registrar of Registrations and Stamps.

28. ARBITRATION

- 28.1 In the event of arising any disputes among the Members, Members and Association, such disputes shall as far as possible be settled in an amicable manner and if same is not possible, the same shall be referred for redressal to the arbitrator and award of the arbitrator shall be final and binding. The arbitration proceedings shall be initiated, carried out and concluded as per the provisions of the arbitration and conciliation act,

Signature of the President/Secretary

1996, and the place of arbitration shall be Visakhapatnam, Andhra Pradesh India.

29. OFFICIAL SEAL

- 29.1 The Association shall have a common “seal” which shall be in the custody of the Secretary and shall be used only under the authority of the Executive Body. Every document on which this seal affixed with signature shall be treated as an endorsement/certification by the Executive Committee.

30. WINDING UP

- 30.1 75% of the Members of the Association may decide about the dissolution of the Association in the General Body meeting. In the event of dissolution of the Association, the assets, debts and liabilities if any shall be transferred to a new Association having similar objectives and aims, which is recognized by the Income Tax Authorities under the provisions of the Income Tax Act, 1961 but shall not be distributed or paid among the Members of the Association.

31. MISCELLANEOUS

- 31.1 The interpretation/expression and other Rules & Regulations not specifically defined in the Bye-laws should be in accordance with the A P Societies Registration Act, 2001 and its amendments thereof or any other applicable laws of the land.

CERTIFIED TO BE A CORRECT COPY

We, the undersigned the persons in the memorandum of Association have formed into an Association and responsible to run the affairs of the Association and desirous of getting the society registered under the A.P. Societies Registration Act 2001 (Act 35/2001).

SINo	Name with Fathers' Name	Designation	Signature
1	Koppaka Gangadhara Narasimha Murthy	President	
2	Vamsy Kiran Aripaka	Vice- President	
3	Suresh Babu Pedireddy	Secretary	
4	Aruna Devi Chennupati.	Joint Secretary	
5	Boina Ravindra	Treasurer	
6	Padala Uma Maheshwar Rao S/o Late P Appanna Rao,	Joint-Treasurer	
7	KAKARLAPUDI SRIDEVI	Block 1 Representative	
8	DAMODARA TIRUMALA GOWRI DEVI	Block 2 Representative	
9	Boddeti Satya Pentarao	Block 3 Representative	
10	N.Madhavi	Block 4 Representative	
11	Chikkala. Jagadeeswari	Block 5 Representative	
12	Dr. M. Krishna Ram Bhatlu	Block 6 Representative	
13	Pentakota venkata satyanarayana	Block 7 Representative	
14	Tankala Venkata Sivaji	Block 8 Representative	

Signature of the President/Secretary

15	V. Shourya Reddy,	Block 9 Representative	
16	A SARVESWARA RAO	Block 10 Representative	
17	Modali Venkata Gopala Naga Soma Satyanand	Block 11 Representative	
18	Dangeti Rama Krishna	Block 12 Representative	

FORM – A : LETTER OF CONSENSUS

Dated: _____

To,

The General Secretary
 MVV City Flat Owners Welfare Association,
 MVV City, Vasundhara Nagar,
 PM Palem Visakhapatnam 530041

Respected Sir / Madam

I, _____, am the Registered owner of Flat No. _____ of _____ Bock at MVV City, PM Palem, Visakhapatnam vide registered sale deed document No. _____ Dt. _____. I am happy to note that an Association is registered among the owners of the Flats and I have read and understood the bye-laws of the Association. Though, every Flat owner automatically becomes the Member of the Association, I hereby give my explicit consent to become Member of the Association and agree to abide by the Bye-laws of the Association. Upon admitting me as a Member, I request you to provide my Membership number.

The below are my addresses:

Home Address:

Work Place Address:

Mobile: _____ Land ine/Alternate Mobile: _____

Thank you,
 Yours Sincerely,

 (owner signature and name)

Signature of the President/Secretary

FORM – B: JOINT DECLARATION & AUTHORIZATION

To,

The General Secretary
 MVV City Flat Owners Welfare Association,
 MVV City, Vasundhara Nagar,
 PM Palem Visakhapatnam 530041

Respected Sir / Madam

We

1. Sri/Smt _____ S/D/W/o _____
2. Sri/Smt _____ S/D/W/o _____
3. Sri/Smt _____ S/D/W/o _____

are the joint owners of Flat No. _____ of _____ Block at MVV City, PM Palem, Visakhapatnam vide registered sale deed document No. _____ Dt. _____. We are happy to note that an Association is registered among the owners of the Flats and we have read and understood the Bye-laws of the Association. Though, every Flat owner automatically a Member of the Association, we hereby give our explicit consent to become Member of the Association and agree to abide by the bye-laws of the Association. We have noted that in case of joint owners of a particular Flat, only one of the owners is eligible to become a member with the consent of other joint owner/s.

We hereby declare that No. _____ among us viz., Sri _____ is to be admitted as a Member of the Association in respect of our Flat and hence this Joint Declaration –cum- Authorization. Upon admitting the said person as Member, we request you to provide the Membership number.

Mobile: _____ Land Line/Alternate Mobile: _____

Thank you,
 Yours Sincerely,

 (1. signature and name)

 (2. signature and name)

 (3. signature and name)

Signature of the President/Secretary

FORM – C: DECLARATION BY THE GUARDIAN OR MINOR OWNER

To,

The General Secretary
 MVV City Flat Owners Welfare Association,
 MVV City, Vasundhara Nagar,
 PM Palem Visakhapatnam 530041

Respected Sir / Madam

I, _____, hereby declare that I am the natural guardian appointed by court order no. _____ dated _____, (a copy of which is enclosed) of Master/Baby. _____ who is owner of the Flat No. _____ of _____ Block at MVV City, PM Palem, Visakhapatnam vide registered sale deed document No. _____ Dt. _____

I am happy to note that an Association is registered among the owners of the Flats and I have read and understood the bye-laws of the Association. Though, every Flat owner automatically a Member of the Association, I hereby give my explicit consent to become Member of the Association and agree to abide by the bye-laws of the Association. Upon admitting me as a Member, I request you to provide my Membership number.

I further declare that I shall represent the said minor in all future transactions/acts/Correspondence of any nature/description and shall act accordingly for the benefit of the minor. I hereby indemnify MVV City Flat Owners Welfare Association against the claim of the minor for any act /transaction /correspondence made by me with the association.

The below are my addresses:

Home Address:

Work Place Address:

Mobile: _____ Land ine/Alternate Mobile: _____

Thank you,
 Yours Sincerely,

 (guardian signature and name)

Signature of the President/Secretary

FORM – D: NOMINATED OWNER AUTHORIZATION LETTER

To,

The General Secretary
 MVV City Flat Owners Welfare Association,
 MVV City, Vasundhara Nagar,
 PM Palem Visakhapatnam 530041

*Attested copy of a
 passport size photo
 of the nominated
 owner to be affixed
 here.*

Respected Sir / Madam

I, _____, am the registered owner of Flat
 No. _____ in _____ Block in MVV City Apartment Complex, Vasundharanagar, PM Palem,
 Visakhapatnam-530041, having purchased the above flat vide Registered Sale Deed
 Document No. _____ dated _____.

Due to my various pre-occupations, now I am not able to act as a member and hence
 in terms of the bye-laws of the Association, I hereby irrevocably authorize Sri/Smt.
 _____ who is my spouse / parents / son /
 daughter who is residing in my flat, to become and be admitted as a member of the Association
 in my place, whose photograph and signature is affixed and attested herewith. Hence, I request
 the Association to admit him/her, whose name is mentioned above, as a Owner member of
 the Association in my place.

Mobile: _____ Land ine/Alternate Mobile: _____

Thank you,
 Yours Sincerely,

 (registered owner signature and name)

 (nominated owner signature and name)

Signature of the President/Secretary

FORM – E: TRANSFER OF OWNERSHIP LETTER

To,

The General Secretary
 MVV City Flat Owners Welfare Association,
 MVV City, Vasundhara Nagar,
 PM Palem Visakhapatnam 530041

Respected Sir / Madam

I, Shri / Smt. _____ Member of the Association with
 Membership number _____ hereby notify that I/we have sold our flat
 number _____ in Block _____ to Shri / Smt. _____ S/o,
 W/o. _____ whose specimen signature is appended. I/we here by
 authorize the Association to transfer my Membership to the said new owner and I/we
 will cease to be the Member of the Association. I also hereby confirm that there is no
 outstanding amount due from me to the Association. I/We also confirm that the
CORPUS FUND I/We paid at the time first purchase of this flat is from now on to be
 concerned as if paid by the said new member. The said new Member shall complete
 Form "A" and any other formalities to become the Member of the Association.

Thank you,
 Yours Sincerely,

 (old registered owner signature and name)

 (new owner specimen signature and name)

Signature of the President/Secretary

FORM – F: PROXY AUTHORIZATION LETTER

Dated: _____

To,

The General Secretary
MVV City Flat Owners Welfare Association,
MVV City, Vasundhara Nagar,
PM Palem Visakhapatnam 530041

Respected Sir/Madam,

I, Shri / Smt. ' _____ ' Member of the
Association with Membership number _____ hereby authorize Shri / Smt
_____ whose signature is attested hereunder, to
vote on my behalf as my Proxy at the General Body meeting of MVV City Flat Owners Welfare
Association to be held on date _____. I have not authorized anyone else to
vote on my behalf.

Thank you,
Yours Sincerely,

(member's signature and name)

(proxy's specimen signature and name)

Signature of the President/Secretary

FORM – G: ASSOCIATE MEMBER AUTHORIZATION LETTER

Dated: _____

To,

The General Secretary
 MVV City Flat Owners Welfare Association,
 MVV City, Vasundhara Nagar,
 PM Palem Visakhapatnam 530041

Respected Sir/Madam,

I, Shri / Smt. _____ owner of Flat No. _____ in
 ____ Block, a Member of the Association with Membership number _____, hereby
 notify that, I have entered into tenancy agreement of my above mentioned flat to Shri / Smt
 . _____ from date _____. He/She shall hereafter
 be admitted as Associate Member of our Association after completing the formalities if any
 from effective Date: _____. The maintenance charges from the said effective date
 shall be paid by said Shri / Smt. _____.

I, Shri / Smt _____ hereby declare that I will abide by the
 rules laid down in the bye- laws of the Association applicable for associate member.

Thank you,
 Yours Sincerely,

 (registered owner's / nominated owner's signature and name)

 (associate owner signature and name)

Signature of the President/Secretary

FORM – H: ASSOCIATE MEMBER CANCELLATION LETTER

Dated: _____

To,

The General Secretary
MVV City Flat Owners Welfare Association,
MVV City, Vasundhara Nagar,
PM Palem Visakhapatnam 530041

Respected Sir/Madam,

I, Shri / Smt. _____ owner of Flat No. _____ in
____ Block, a Member of the Association with Membership number _____, hereby
notify that, I intend to terminate tenancy agreement of my above mentioned flat with Shri /
Smt . _____ from date _____. He/She shall
hereafter cease to be a Associate Member of our Association and any dues or outstanding
amounts from him/her will be paid by me.

Thank you,
Yours Sincerely,

(registered owner's / nominated owner's signature and name)

Signature of the President/Secretary

FORM – I: LETTER REQUESTING OF CHANGE OF CONTACT DETAILS

Dated: _____

To,

The General Secretary
 MVV City Flat Owners Welfare Association,
 MVV City, Vasundhara Nagar,
 PM Palem Visakhapatnam 530041

Respected Sir/Madam,

I, Shri / Smt. _____ Member of the Association with
 Membership number _____ request you to update my contact details in
 the records of the association as below

Home Address:

Work Place Address:

Mobile: _____ Land ine/Alternate Mobile: _____

Thank you,
 Yours Sincerely,

 (registered owner's / nominated owner's / associate member signature and name)

Signature of the President/Secretary